

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lily Carayannis	Team: Squad #12	CCRB Case #: 201406124	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 06/19/2014 10:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/19/2015	Precinct: 48		
Date/Time CV Reported Fri, 06/20/2014 3:08 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/20/2014 12:49 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			Unknown
2. POM Darrell Lowe	31849	955099	PBBX
3. POM Warren Lopez	29434	955091	PBBX
4. POM Richard Mcknight	7955	955170	PBBX
5. An officer			Unknown

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Enmanuel Montesino	11896	954146	PBBX
2. POM Sheriff Muse	26597	948392	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Darrell Lowe	Force: PO Darrell Lowe struck § 87(2)(b) with an asp.	A . Exonerated
B . POM Warren Lopez	Force: PO Warren Lopez struck § 87(2)(b) with an asp.	B . Exonerated
C . POM Warren Lopez	Abuse: PO Warren Lopez threatened § 87(2)(b) with the use of force.	C . Unsubstantiated
D . POM Darrell Lowe	Force: PO Darrell Lowe used physical force against § 87(2)(b)	D . Unfounded
E . POM Warren Lopez	Force: PO Warren Lopez used physical force against § 87(2)(b)	E . Unfounded
F . POM Darrell Lowe	Force: PO Darrell Lowe used physical force against § 87(2)(b)	F . Unfounded
G . POM Richard Mcknight	Force: PO Richard Mcknight used physical force against § 87(2)(b)	G . Unfounded
H . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	H . Officer(s) Unidentified
I . Officers	Force: Officers used physical force against § 87(2)(b)	I . Unfounded
J . An officer	Discourtesy: An officer spoke discourteously to individuals.	J . Officer(s) Unidentified

Case Summary

On June 19, 2014, at approximately 10:00 p.m., § 87(2)(b) was arrested behind § 87(2)(b) in the Bronx by PO Darrell Lowe and PO Warren Lopez, both from Patrol Borough Bronx. Earlier in the night, § 87(2)(b) was in § 87(2)(b), when an argument started between customers and store owners. PO Lowe and PO Lopez asked § 87(2)(b) to leave the location. § 87(2)(b) crossed the street and walked to § 87(2)(b) in the Bronx when he observed PO Lowe and PO Lopez following him. § 87(2)(b) attempted to climb a fire escape ladder where he allegedly kicked PO Lowe and PO Lopez in the face and chest. PO Lowe and PO Lopez hit § 87(2)(b) with their asps while he was hanging from the fire escape ladder (**Allegation A and B**). § 87(2)(b) jumped down and was handcuffed. PO Lopez told § 87(2)(b) “Oh, you want to resist. I’ll make sure that you never walk again.” (**Allegation C**). PO Lopez and PO Lowe then dragged § 87(2)(b) on his knees to the front of the building (**Allegation D and E**). While the officers were removing § 87(2)(b) from the back of the building, § 87(2)(b), § 87(2)(b)’s brother, allegedly tried to film PO Lowe and PO Lopez with his cellphone. PO Lowe chest bumped § 87(2)(b) and elbowed him in the head (**Allegation F**). § 87(2)(b) was placed in a police vehicle. Several officers from different commands arrived at the location. PO Richard McKnight, from the 48th Precinct, and other officers from several different commands approached § 87(2)(b) to place him under arrest. PO McKnight punched § 87(2)(b) multiple times in the back causing § 87(2)(b) to fall on the ground (**Allegation G**). Officers, he could not see which, called him a “dickhead” (**Allegation H**) while they were punching, kicking, and elbowing § 87(2)(b) over fifty times (**Allegation I**). An officer, he did not know who, called him a “motherfucker” (**Allegation H continued**). An officer grabbed his jaw and put his fingers in his nostrils (**Allegation I continued**) and § 87(2)(b) bit PO McKnight’s finger. An officer told onlookers to mind their own “fucking” business (**Allegation J**).

§ 87(2)(b) who filed this complaint with the CCRB, did not witness the incident. This case has video evidence.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b) was charged with § 87(2)(b)

§ 87(2)(b). § 87(2)(b) was charged with § 87(2)(b).

This case was originally assigned to Investigator Cassandra Fendley. On January 14, 2015, the case was reassigned to Investigator Tiffany Dempsey. On June 11, 2015, the case was reassigned to Investigator Lily Carayannis.

Mediation, Notice of Claim, and Criminal Histories

This case was not suitable for mediation as § 87(2)(b) and § 87(2)(b) were arrested for assaulting an officer. As of October 30, 2014, no Notice of Claim has been filed with the City of New York in regards to this incident (encl. L1).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint to which [§ 87(2)(b)] and [§ 87(2)(b)] have been a party (encl. A4-5).
- PO Lopez and PO Lowe have been members of service for one year and this is the only CCRB complaint pled against them (Encl. A1-2).
- PO McKnight has been a member of service for one year and has no substantiated allegations against him. He has had one prior CCRB complaint that was closed as complainant uncooperative (encl. A3).

Findings and Recommendations

Explanation of Subject Officer Identification

[§ 87(2)(b)] (encl. D1-7) could not see and thus could not describe the officers who allegedly punched, kicked, and elbowed him and he could not see nor could he describe the officers who called him a “dickhead” and “motherfucker.” [§ 87(2)(b)] (encl. C1-7) could not describe the officer who allegedly said to individuals to mind their own “fucking” business. None of the officer acknowledged doing these actions. [§ 87(2)(g)]

Investigation Findings and Recommendations

Allegations Not Pled

[§ 87(2)(g)]

[§ 87(2)(b)] stated that he was told by [§ 87(2)(b)] that an officer told her to get the “fuck” out of the area. [§ 87(2)(b)] did not allege that on her own behalf, [§ 87(2)(g)]

Allegation A—Force: PO Darrell Lowe struck [§ 87(2)(b)] with an asp.

Allegation B—Force: PO Warren Lopez struck [§ 87(2)(b)] with an asp.

It is undisputed that [§ 87(2)(b)] climbed a fire escape ladder to escape arrest. It is undisputed that PO Lowe and PO Lopez struck [§ 87(2)(b)] on his legs with their asps.

[§ 87(2)(b)] (encl. C1-7) stated that he was attempting to climb the ladder only and he did not state that he had ever struck or kicked the officers.

The surveillance footage from [§ 87(2)(b)] is of such poor quality that it cannot be determined what [§ 87(2)(b)] was doing with his feet immediately prior to being struck with the asps (encl. E1-2).

PO Lowe (encl. F1-13) and PO Lopez (encl. G1-12) both stated that [§ 87(2)(b)] kicked them in the head and chest. PO Lopez went LOD for a laceration to his left index finger which was

caused by § 87(2)(b) kicking him in the head and chest. PO Lopez went LOD for asthma and dizziness which was caused by § 87(2)(b) kicking him in the head and chest.

Patrol Guide Procedure 203-11 (encl. 01-2) Officers are to use the minimal amount of force necessary when apprehending a subject.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** and **B** be **exonerated**.

Allegation C—Abuse of Authority: PO Warren Lopez threatened § 87(2)(b) with the use of force.

§ 87(2)(b) (encl. C1-7) alleged that PO Lopez said, “Oh, you want to resist. I’ll make sure that you never walk again.”

PO Lowe (encl. F1-13) and PO Lopez (encl. G1-12) denied making or hearing this statement.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be **unsubstantiated**.

Allegation D—Force: PO Darrell Lowe used physical force against § 87(2)(b)

Allegation E—Force: PO Warren Lopez used physical force against § 87(2)(b)

§ 87(2)(b) (encl. C1-7) alleged that after he was handcuffed, PO Lowe and PO Lopez dragged his knees on the ground as they walked him to the front of the building.

PO Lowe (encl. F1-13) and PO Lopez (encl. G1-12) stated that § 87(2)(b) walked of his own accord and resisted by pushing back on the officers.

The video evidence shows § 87(2)(b) walking toward the exit with PO Lowe and PO Lopez. § 87(2)(b) appears to be pushing backward with his body (encl. E1-2).

§ 87(2)(g)

It is therefore recommended that **Allegations D** and **E** be **unfounded**.

Allegation F—Force: PO Darrell Lowe used physical force against § 87(2)(b)

§ 87(2)(b) (encl. D1-7) alleged that he was attempting to film the officers arresting § 87(2)(b) with his cellphone when PO Lowe chest bumped him and elbowed him in the head. § 87(2)(b)'s head hit the wall and § 87(2)(b) fell to the ground. § 87(2)(b) sought medical treatment after this and additional alleged physical interactions with other officers, but his medical records show that he sustained scraps to his back and chest.

PO Lowe (encl. F1-13) and PO Lopez (encl. G1-12) denied hitting § 87(2)(b) or elbowing him. PO Lowe stated that § 87(2)(b) blocked their path and that he chest bumped PO Lowe. PO Lowe and PO Lopez acknowledged pushing their body through a group of people, which included § 87(2)(b).

The video evidence shows § 87(2)(b) physically blocking the officers’ path and pushing against them. He is not holding a cellphone. As the officers walk off screen, PO Lowe’s arm moves up and § 87(2)(b) is moved out of the frame (encl. E1-2).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be **unfounded**.

Allegation G—Force: PO Richard McKnight used physical force against § 87(2)(b)

Allegation I—Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) (encl. D1-7) alleged that after he was handcuffed, PO McKnight, unprovoked, punched him in the back left side of his head causing him to fall forward and hit his face on the ground. An officer then dragged him on his face. Numerous officers kned and elbowed him. Officers then kicked and punched § 87(2)(b) over 50 times. Two officers then grabbed § 87(2)(b) by the nostrils and jaw. § 87(2)(b) then bit PO McKnight's finger.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)'s arrest photograph depicts a bruise to his cheek (encl. K14).

All of the officers interviewed stated that § 87(2)(b) kicked his legs off of a vehicle and landed on the ground. PO McKnight fell with § 87(2)(b) and when he attempted to pick § 87(2)(b) up, § 87(2)(b) bit PO McKnight.

PO McKnight (encl. H1-8) denied ever striking § 87(2)(b) prior to being bit. Once § 87(2)(b) bit him, he clamped his teeth on PO McKnight's finger. PO McKnight punched him in the face or head to have him release his finger.

None of the other officer acknowledged seeing any additional force used and none of the officers acknowledged using additional force. PO McKnight went Line of Duty as a result of his interaction with § 87(2)(b) § 87(2)(b) (encl. H4).

§ 87(2)(g)

It is therefore recommended that **Allegations G and I** be **unfounded**.

Allegation H—Discourtesy: Officers spoke discourteously to § 87(2)(b)

Allegation J—Discourtesy: An officer spoke discourteously to individuals.

§ 87(2)(g)

It is therefore recommended that **Allegations H and J** be closed as **officers unidentified**.

Pod: 12

Investigator: Lily Carayannis June 19, 2015

	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date